

25STLC05444 25STLC05444

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F07%2F2026

Source SHA-256: 5b8574dd3ca11d7ec1d60dd2c8b22ca3f7788c080ab6078a4a30784e0721ba65

Case Number: 25STLC05444 Hearing Date: July 7, 2026 Dept: 26

TENTATIVE

RULING:

Defendants Shaun Ross and David

Wallace's Motion for Summary Judgment is denied without prejudice to bringing a motion in full compliance with the statutory requirements.

Analysis:

On July 15,

2025, Plaintiff Rommy Shy ("Plaintiff"),

in propria persona, filed this action for recovery of COVID-19 rental debt against Defendants Shaun

Ross ("Defendant Ross") and David Wallace ("Defendant Wallace"). Defendants, also in propria persona, filed Answers on August 29, 2025. On October 14, 2025, Plaintiff filed a Substitution of Attorney indicating he would be represented by Attorney Yoel Hanohov. A second Substitution of Attorney was then filed on November 5, 2026, switching Plaintiff back to a self-represented litigant, and listing their email address as .

On April 9, 2026, Defendants filed the

instant Motion for Summary Judgment. The Motion was served on Plaintiff by electronic mail the day before. No opposition has been filed to date.

Discussion

Defendants move for summary

judgment on the Complaint pursuant to Code of Civil Procedure section 437c. A

defendant seeking summary judgment must show either (1) that one or more elements of the cause of action cannot be established; or (2) that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff is under no evidentiary burden to produce rebuttal evidence until the moving defendant meets its initial moving burden. (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 839-840.)

Initially, the Court addresses service of the Motion on Plaintiff by electronic mail. The email address to which the Motion was served was , which does not match the email address listed in Plaintiff's Substitution of Attorney form. (Motion, p. 125.) Defendants, therefore, have not demonstrated service of the Motion to the correct address. Failure to give notice of a motion is not only a violation of the statutory requirements but of due process. (Code Civ. Proc., § 437c; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) The Court cannot grant the Motion without a showing of proper service.

Second, under Code of Civil Procedure section 437c, a separate statement must be filed and served in support of, and in opposition to, the motion for summary judgment. (Code Civ. Proc., § 437c, subds. (b)(1), (b)(3).) This is echoed in the California Rules of Court. (See Cal. Rules of Court, rule 3.1350(c) and (e).) The separate statements must plainly and concisely set forth "all material facts that the moving party contends are undisputed" and the opposing party's response to each of the material facts. (Code Civ. Proc., § 437c, subds. (b)(1), (b)(3).) The moving separate statement of material facts must be set forth in a two-column format with facts on the left-hand side and evidence on the right-hand side. (Cal. Rules of Court, rule 3.1350(h).) Failure to include a separate statement of undisputed facts is grounds to deny a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (b)(1).)

Although Defendants' Motion states that it is supported by a Separate Statement of Undisputed Material Facts, no such document is in the Court's docket as having been filed or served upon Plaintiff. (See Notice of Motion, p. 2:13-14.) The moving memorandum of points and authorities includes a section that lists "undisputed facts," but it does not comply with the formatting and evidentiary requirements. (Motion, pp. 7:20-8:21.) As the Court of Appeals has explained: "Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex

motions for ... summary judgment to determine quickly and efficiently whether material facts are in dispute.” (Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1210, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 335.)

Furthermore, it has long been the rule that self-represented litigants are held to the same standards as practicing attorneys. (Lombardi v. Citizens Nat. Trust etc. Bank (1955) 137 Cal.App.2d 206, 208–209.) The lack of a supporting separate statement for the instant Motion for Summary Judgment renders it so procedurally defective that the Court cannot evaluate the parties’ arguments in the manner dictated by the Code of Civil Procedure and the California Rules of Court.

Conclusion

Based on the foregoing, Defendants Shaun Ross and David Wallace’s Motion for Summary Judgment is denied without prejudice to bringing a motion in full compliance with the statutory requirements.

Judicial Assistant to give notice.